

**BEFORE THE
FEDERAL MARITIME COMMISSION**

MSRF Inc.	)	
	)	
<i>Complainant,</i>	)	DOCKET NO. 22-20
	)	
v.	)	
	)	
HMM Company Limited,	)	
<i>Respondent.</i>	)	
	)	

**MOTION FOR CONFIDENTIAL TREATMENT
OF CERTAIN MATERIALS ON CONSENT**

Pursuant to 46 C.F.R. §§502.69, 502.141(j)(1) and 502.5(b), Respondent HMM Company Limited (“HMM”) hereby moves for confidential treatment of certain materials (“Motion for Confidential Treatment”) included with or referred to in Respondent’s Brief, Respondent’s Proposed Findings of Fact, Respondent’s Reply to Complainant’s Proposed Findings of Fact, and Respondent’s Appendix (together, the “Brief”).

Counsel for Respondent has conferred with counsel for the Complainant regarding Respondent’s Motion for Confidential Treatment, and counsel for Complainant consents to the relief sought herein.

On January 4, 2023, the presiding officer issued an Order Entering Confidentiality Stipulation and Protective Order (“Confidentiality Order”), providing for the confidential treatment of certain materials produced in discovery in this proceeding (“Confidential Information”). The Confidentiality Order as issued contemplates the use of confidential material in connection with briefing on the merits and requires that Confidential Information disclosed to the Commission and the Administrative Law Judge in papers, including exhibits, shall be labeled

in accordance with 46 CFR §502.5 and that “(t)he ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).”

Pursuant to the foregoing, the Respondent moves for the continued confidential treatment of the categories of evidence set forth below, for the reasons indicated.

1. Two witnesses were produced by the Respondent and two witnesses were produced by Complainant who testified regarding confidential contracts between the parties, requests for proposals and negotiations relating to same and numerous communications, documents and presentations relating to non-public financial, marketing and business activities of the parties. All of this testimony and many of the documents adduced during this testimony were designated “Confidential” pursuant to the Confidentiality Order;
2. Documents were produced by the parties which included confidential contracts, communications, and documents which contained commercially-sensitive information exchanged between the parties as well as commercially-sensitive information produced during the course of this litigation. Many of these documents were produced during discovery and were designated as “Confidential” by the parties.

Pursuant to Rule 502.5 (b), Respondent has filed with the Brief and corresponding filings a Confidential-Restricted version which designates the confidential material and will file a Public Version in which the confidential material has been redacted within three business days. As indicated above, counsel for Complainant has consented to this Motion for Confidential Treatment.

For the foregoing reasons, the Respondent requests that the materials so designated in the Respondent’s Brief, Respondent’s Proposed Findings of Fact, Respondent’s Reply to

Complainant's Proposed Findings of Fact, and Respondent's Appendix be kept confidential and not disclosed to the public.

Dated: May 12, 2023

Respectfully submitted,

COZEN O'CONNOR

By: /s/

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of May, 2023, a true and correct copy of the foregoing Motion for Confidential Treatment was served via electronic mail on:

R. Kevin Williams, Esq.
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/s/
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